

The Board of Education of the Brecksville-Broadview Heights City School District met in regular session on January 27, 2021, commencing at 7:00, in the Board Room at 6638 Mill Road, Brecksville, Ohio, with the following members present:

The Treasurer advised the Board that the notice requirements of Section 121.22 of the Revised Code and the implementing rules adopted by the Board pursuant thereto were complied with for the meeting.

_____ moved the adoption of the following Resolution:

RESOLUTION NO. _____

A RESOLUTION APPROVING THE PROCUREMENT OF DESIGN-BUILD SERVICES FROM GARDINER SERVICES COMPANY THROUGH PARTICIPATION IN A CONTRACT OF THE OHIO SCHOOLS COUNCIL IN AN AMOUNT NOT TO EXCEED \$2,900,000.00.

WHEREAS, pursuant to the procedures of Ohio Revised Code Section 153.65 through 153.571, the Ohio Schools Council, a regional council established under Chapter 167 of the Revised Code (the “COG”), has entered into a contract with Gardiner Services Company (“Design-Builder”) that allows for the Design-Builder, through its contract with the COG, to provide design-build services for HVAC improvements and upgrades to the COG’s school district members; and

WHEREAS, this Board desires to participate in the contract of the COG pursuant to Chapter 167 of the Revised Code by entering into an agreement for design-build services with the Design-Builder for the purpose of procuring HVAC improvements and upgrades; and

WHEREAS, the participation in the COG contract for HVAC services and that these services are available from a single source provide exemptions from competitive bidding.

NOW, THEREFORE, BE IT RESOLVED by the Board of Education of the Brecksville-Broadview Heights City School District, County of Cuyahoga, Ohio, that:

Section 1. Approval and Execution of Agreement for Design-Build Services. The Treasurer of this Board is hereby authorized to sign, acknowledge and deliver, in the name of and on behalf of the School District, the Agreement for design-build services substantially in the form now on file with the Treasurer. The form of the agreement is approved with such changes therein that are not materially inconsistent with this Resolution and not substantially adverse to the School District and that are permitted by law and shall be approved by the Superintendent and Treasurer. The approval of such changes, and that such changes are not materially inconsistent with this Resolution and not

substantially adverse to the School District, shall be conclusively evidenced by the signing of the agreement by those officials provided that the amount spent thereunder shall not exceed \$2,900,000.00.

Section 2. Approval and Execution of Related Documents. The President or Vice-President and Treasurer of this Board and the Superintendent, or such other School District officials as shall be designated by those officials, as appropriate, are each authorized and directed to sign any certificates or documents, and to take such other actions as are desirable, advisable, necessary or appropriate, to consummate the transactions contemplated by this Resolution.

Section 3. Compliance with Open Meeting Requirements. This Board finds and determines that all formal actions of this Board and any of its committees concerning and relating to the adoption of this Resolution were adopted in an open meeting of this Board or committees, and that all deliberations of this Board and any of its committees that resulted in those formal actions were in meetings open to the public, in compliance with the law.

Section 4. Captions and Headings. The captions and headings in this Resolution are solely for convenience of reference and in no way define, limit or describe the scope or intent of any Sections, subsections, paragraphs, subparagraphs or clauses hereof.

Section 5. Effective Date. This Resolution shall be in full force and effect from and immediately upon its adoption.

_____ seconded the motion.

Upon roll call on the adoption of the Resolution, the vote was as follows:

TREASURER'S CERTIFICATE

The foregoing is a true and correct excerpt from the minutes of the regular meeting of the Board of Education of the Brecksville-Broadview Heights City School District, Ohio, held on January 27, 2021.

Dated: _____, _____

Treasurer, Board of Education
Brecksville-Broadview Heights City School District,
Ohio